



U.S. Department
of Transportation

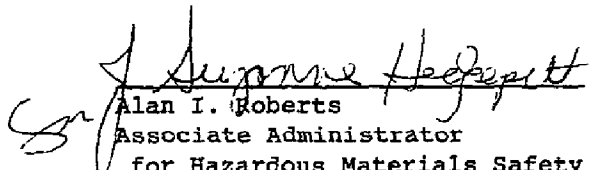
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8099 (EXTENSION)
FIFTH REVISION December 16, 1987

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8099 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 02 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Rhone-Poulenc Ag Company
Research Triangle Park, NC

August 10, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 8099
(FIFTH REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 16 1987

1. Rhone-Poulenc, Inc., Monmouth, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Class B poisonous solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification composite packaging for shipment of poisonous solids, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Rhone-Poulenc Ag, Company, Research Triangle Park, NC - PTE-1

2. BASIS. This exemption is based on Rhone-Poulenc, Inc's application dated December 10, 1986, submitted in accordance with 49 CFR 107.111 and the public proceeding thereon; Union Carbide Corporation's supplemental letter dated October 7, 1987. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Rhone-Poulenc Ag Company's application dated June 25, 1987.

3. HAZARDOUS MATERIALS (Descriptor and class). Dry granular mixtures containing not more than 15% by weight of "TEMIK" and in which the liquid is absorbed in an inert material, classed as a Poison B, solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Poisonous solid, n.o.s.; Insecticide, dry, n.o.s.; Poison B, solid, n.o.s.; or Carbamate pesticide, solid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.365(a)(15).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging consists of a non-DOT specification corrugated fiberboard box with an inner heat-sealed bag. Quantity of material in bag not to exceed 35 pounds.

a. Detailed construction and specifications of one form of packaging are included in Test Reports dated September 26, 1978 and June 18, 1980, furnished in Union Carbide Corporation's application dated October 27, 1978 and June 20, 1980, in which the outer box is a full overlap, end-opening container constructed of 300-pound test, single-wall corrugated fiberboard, with flaps sealed with water resistant adhesive. The inner bag is non-gusseted, open mouth heat sealed, and comprised of a lamination of:

- 1) Nylon film/PE Aluminum foil/PE/Polyethylene film, or
- 2) Extensible Draft/PE/Aluminum foil/PE, or
- 3) Ethylene acrylic acid/Aluminum foil/Ethylene acrylic acid/nylon, or
- 4) Surlyn/Aluminum foil/Surlyn nylon

b. Detailed construction and specifications of another form of packaging are included in Attachment 1 to Union Carbide Corporation's application dated September 24, 1979, in which the outer container is constructed of 275-pound test double-wall corrugated fiberboard with flaps sealed with water resistant adhesive. The inner bag is glued in outer box and is non-gusseted, open-mouth heat-sealed, and comprised of a lamination of Kraft/PE/aluminum foil/PE film.

c. Detailed construction and specifications for a third form of packaging, having an authorized quantity of material in an inner heat-sealed bag not to exceed 46 pounds, are included in Attachments A B and C, to Test Reports furnished with Union Carbide Corporation's application dated August 28, 1986, and Test Reports and corrected drawings (Exhibit A and Exhibit B) submitted on December 10, 1986, in which the outer box is a full overlap, end-opening container constructed of 275-pound test, single-wall corrugated fiberboard, with a U-shaped inner corrugated fiberboard liner of minimum 275-pound test, double-wall board. The inner bag is gusseted, open mouth heat sealed, and comprised of an adequate barrier in combination with one of the following minimum paper constructions:

- 1) Two plies of 60 lb. test shipping sack Extensible Kraft paper; or
- 2) Three plies of 50 lb. test shipping sack Natural Kraft paper.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reshipe them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. February 27, 1989.

Issued at Washington, D.C.:


Alan I. Roberts

Director

Office of Hazardous Materials Transportation

DEC 16 1987

(DATE)

DEC 16 1987

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.